

**CITY OF BOULDER
CITY COUNCIL PROCEEDINGS**

DECEMBER 19, 2000

1. **CALL TO ORDER AND ROLL CALL** - 6:05 p.m.

Deputy Mayor Mock called the regular December 19, 2000 meeting of the Boulder City Council to order at 6:00 p.m. in the Council Chambers.

Those present were: Deputy Mayor Mock and Councilmembers Corson, Eldridge, Lopez, Morzel, Poinsett and Riggle. Havlick and Toor was absent.

2. **CITIZEN PARTICIPATION** - 6:05 p.m.

1. Manfred Schwoch, 4666 Ipswich St. - re: US 36- supports A plus option for bicycle safety. Construction issues are a concern.
2. Ricky Weiser, 4020 N. 75th - re: Speaking for Paul Danish, is opposed to tree removal on the Mall: change of land use in the Jewel Properties.
3. Carolyn Brinski, 3210 Darley - re: Supports clemency for Leonard Peltier
4. Premena, P.O. Box 1038 - re: Supports concept of bikeway between Denver and Boulder. Pine Street traffic is not yielding to pedestrians.
5. Rob Smoke, 2445 19th St. - re: Crossroads concerns- re-open the concept process to the public- mentioned botanical garden idea..
6. Sue Anderson, 1135 Jay St. - re: Rail can be done incrementally- Item 3B- US 36 does not contain an interim alternative.
7. Robert Sharpe, 5995 Marshall - re: Holiday Greetings: thanks to all who make Boulder a better place to live. Interested in improving citizen participation.
8. Robert L. Castellino, 1465 Ithaca Dr. - re: Unhappy about proposal of Crossroads- Global Center for Ecology Commerce- Omni Max.
9. Neal Lurie, 4934 10th St. - re: US 36: 79% of population will support new bike opportunities.
10. John Sherwood, 3009 Madison - re: Commuter Rail; in support- need a single line now.
11. Kay Nuissl, 1499 Westview Dr. - re: Body Shop supporting clemency for Leonard Peltier.
12. Cynthia Schilliney, 502 College - re: UHAG report- hopeful but concerned about enforcement taking a negative turn.
13. Jeep Campbell, 4395 Grinnell - re: concerned about the proposal of Hill topics- unhappy with Council position. "Fix the fence".
14. Tom Russell, 292 15th - re: Hill neighbors thanking UHAG. Happy with recommendations.
15. Gary Ball, 5102 Williams Fork Tr., #105 - re: clemency for Leonard Peltier.
16. Betty Ball, 5102 Williams Fork Tr., #105 - re: clemency for Leonard Peltier.

17. Lee Hill, P.O. Box 21151 - re: as working attorney for Leonard Peltier, encourages action on part of Council to support clemency.
18. Michael Rowe, 6292 Arapahoe, #2 - re: supports commuter rail
19. Francesca Woolger, 590 Union - re: requested clemency for Leonard Peltier.
20. Lynn Segal, 538 Dewey - re: 1) Crossroads- get Mace Rich out. 2) Grandview Terrace- make meeting public. 3) Housing affordability- why no fees for developers?- a luxury home tax. 4) Increase density 5) Supports clemency for Leonard Peltier.

COUNCIL/STAFF RESPONSE-7:00 p.m.

City Manager Ron Secrist responded:

- 1) Asking for clarification concerning Council letters of support regarding political resolutions.
- 2) Confirmed that CAC will look at Council procedures regarding Citizen Participation.
- 3) Staff supports revisiting Crossroads public input process.

Councilmember Poinsett set the record straight that the Daily Camera mis-stated that there had ever been discussion of using Sales Tax or Bonds for funding the revamp of Crossroads.

3. **CONSENT AGENDA** - 7:10 p.m.

- A. **APPROVAL OF THE CITY COUNCIL MEETING MINUTES OF DECEMBER 5, 2000 AND DECEMBER 12, 2000.**
- B. **APPROVAL OF THE SUMMARY OF THE NOVEMBER 28, 2000 STUDY SESSION: REVIVING UNIVERSITY HILL.**
- C. **CONSIDERATION OF AN EMERGENCY ORDINANCE APPROVING AN AMENDMENT TO THE INTERGOVERNMENTAL AGREEMENT FOR COLLECTION OF COUNTY USE TAX BETWEEN BOULDER COUNTY AND THE CITY OF BOULDER.**
- D. **CONSIDERATION OF A MOTION TO ACCEPT THE UPDATED TREATED WATER MASTER PLAN.**
- E. **CONSIDERATION OF A MOTION APPROVING THE ACQUISITION AND REMOVAL OF THE APARTMENT BUILDING LOCATED AT 299 ARAPAHOE, WHICH IS LOCATED ON THE EAST END OF EBEN FINE PARK.**

- F. **SECOND READING AND CONSIDERATION OF ORDINANCE NO. 7107 VACATING A PORTION OF STEEPLY SLOPING 17TH STREET RIGHT-OF-WAY LOCATED ONE HALF BLOCK NORTH OF MAPLETON AVENUE WHERE THE 17TH STREET ENDS AT THE REAR PROPERTY LINE OF 1700 BLUFF STREET.**
- G. **CONSIDERATION OF A RESOLUTION TO CONTINUE ASSUMING DUTIES AS A REVIEWING ENTITY FOR THE STATE OF COLORADO INCOME TAX CREDIT FOR QUALIFIED COSTS INCURRED IN THE PRESERVATION OF HISTORIC PROPERTIES (SECTION 39-22-514, CRS) FOR THE CALENDAR YEAR 2001.**
- H. **CONSIDERATION OF A MOTION TO APPROVE A 20-YEAR LEASE TO SPRINT PCS AT THE BOULDER MUNICIPAL AIRPORT.**
- I. **CONSIDERATION OF A MOTION APPROVING THE 2001 HUMAN SERVICES FUND ALLOCATION RECOMMENDATIONS.**
- J. **CONSIDERATION OF APPROVAL OF AN ADDITIONAL REVISION TO THE BOULDER VALLEY COMPREHENSIVE PLAN POLICIES FOR THE FIVE-YEAR UPDATE CONCERNING ACCESSORY UNITS.**

Councilmember Eldridge moved, seconded by Lopez, to approve Consent Agenda items 3-A through 3-J.

4. **MATTERS FROM THE CITY MANAGER** - 7:15 p.m.

A. **UNIVERSITY HILL ACTION GROUP IMPLEMENTATION UPDATE.**

City Manager Ron Secrist reported on Action Items:

- 2) Expanding policies- adding funds for overtime.
- 3) Enhanced code enforcement- re-assigned one full time employee for one year to assess need of ongoing full-time employee.
- 4) Enhanced street sweeping; six month pilot program.
- 5) Rental licensing- user's group is working through checklist
- 9) Spring 2001 neighborhood clean-up. Cost \$500,000 city wide. Spring Pilot program for Hill.
- 16) Improving procedures for shared information between CU and the City; violations and offenders. Hill area building for shared office space.

Ordinance changes or immediate implementations are in the works.

7) Western Disposal- requires equipment adaptation- timely research and implementation

Item 11 should read "completed by June 30th 2001".

3) On the web issues and break it down a piece at a time. The rental licensing can go now. Updates due in January, March and June.

Planning Board is working on the above items and landscaping at 9th and College.

Staff Direction from Council:

Questions of time frames.

Councilmember Morzel: Question: regarding proposed spring clean-up; how to confine to just Hill residents. Answer: build on the couch pick-up that is already in place
Question regarding coordination with CU for twice a year pick-up. Answer: Discussion is in place.

Councilmember Corson: Question: the definition of University Hill may change with projects because there will be ordinance changes or creation. Answer: All city ordinances but with more enforcement in trouble areas. Include Martin Acres? Not initial programs.

Councilmember Eldridge: Must go City wide by year 2002.

Councilmember Poinsett: Question: Regarding audit. Answer: Audit independent.

Don Durso appointed as Uni Hill Planning representative.

B. PRESENTATION OF MALL MASTER PLAN FINAL DESIGN AND PLAN FOR IMPLEMENTATION.

Molly Winter presented changes and updates.

5. **MATTERS FROM THE CITY ATTORNEY:** None - 9:10 p.m.

6. **MATTERS FROM MAYOR AND MEMBERS OF COUNCIL:** - 9:15 p.m.

A. POTENTIAL CALL-UPS:

1. **FLOODPLAIN DEVELOPMENT PERMIT FOR 9TH STREET AND CANYON BOULEVARD, ST. JULIEN HOTEL, CAGID PARKING STRUCTURE AND CIVIC USE BUILDING. WIP DATE: 12/7/00. LAST OPPORTUNITY FOR CALL-UP 12/19. STAFF APPROVAL GRANTED.**
No action.
2. **VACATION OF A PLATTED 20-FOOT UTILITY EASEMENT LOCATED APPROXIMATELY 70 FEET BACK FROM THE FRONT PROPERTY LINES OF FOUR PROPERTIES 2015, 2025, 2035, AND 2045 BALSAM DRIVE. WIP DATE: 12/7/00. LAST OPPORTUNITY FOR CALL-UP 12/19. STAFF APPROVAL GRANTED.** No action.
3. **OUT-OF-CITY UTILITY AGREEMENT AND REVOCABLE PERMIT FOR 1245 CHERRYVALE ROAD. WIP DATE: 12/13/00. LAST OPPORTUNITY FOR CALL-UP 12/19. STAFF APPROVAL WAS GRANTED.** No action
4. **VACATION OF A DEDICATED UTILITY EASEMENT LOCATED AT 6630 GUNPARK DRIVE. WIP DATE 12/13/00. LAST OPPORTUNITY FOR CALL-UP 12/19. STAFF APPROVAL WAS GRANTED.** No action.
5. **USE REVIEW #UR-2000-15 TO ADD A SECOND STORY DWELLING UNIT TO AN APPROVED CHILDREN'S DAY CARE FACILITY AT 4072 19TH STREET, BOULDER WALDORF KINDERGARTEN. WIP DATE 12/13/00. LAST OPPORTUNITY FOR CALL-UP 01/06/01. STAFF APPROVAL WAS GRANTED.** No action.
- B. **CONSIDERATION OF THE CITY OF BOULDER'S POSITION IN SUPPORT OF A LOCALLY PREFERRED ALTERNATIVE FOR THE US 36 MAJOR INVESTMENT STUDY (MIS). - 9:20 p.m.**

Councilmember Corson moved, seconded by Lopez, to accept the Transportation Advisory Board's recommendation for the US 36 Major Investment Study (MIS).

- C. **DISCUSSION REGARDING BURA BOARD RECOMMENDATION TO OVERSEE REDEVELOPMENT OF CROSSROADS MALL.** No action. - 9:30 p.m.
- D. **28TH STREET VALUE ENGINEERING REVIEW.** No action.- 9:45 p.m.
- E. **ROCKY FLATS BURN.- 9:47 p.m.**

Council member Morzel reported no burns will occur in spring of 2001.

7. **PUBLIC COMMENT:**

- 1) Lynn Segal, 538 Dewey - re: 1) Free Leonard. 2) Provide good restrooms and more trees on the mall.
- 2) Robert Sharpe, 299 Arapahoe - re: Concern of Council process.
- 3) Ricky Weiser, 4020 North 75th - re: concerns regarding handicapped parking.
- 4) Mo Rait - re: Rudy.

8. **FINAL DECISIONS:**

Vote was taken on a motion to review possible Council support of clemency for Leonard Peltier at January 2nd Council meeting. The motion failed 5:2 Morzel and Poinsett for; Havlick and Toor absent.

Vote was taken on the motion to approve Consent Agenda Items 3-A through 3-J with Corson recused on Item 3-G and Eldridge recused on Item 3-E. The motion carried: 7:0. Havlick and Toor absent.

Vote was taken on the action to accept Transportation Advisory Board's recommendation of option A Plus with a list of additions. The motion carried: 7:0. Havlick and Toor absent.

ORDER OF BUSINESS

PUBLIC HEARINGS: 9:55 p.m.

9. **SECOND READING AND CONSIDERATION OF ORDINANCE NO. 7098 TO ANNEX AND ZONE 37,898 SQUARE FEET LOCATED AT 2810 JAY ROAD TO RR-E (RURAL RESIDENTIAL - ESTABLISHED).**

Councilmember Lopez moved, seconded by Eldridge, to adopt Ordinance No. 7098 to annex and zone 37,898 square feet located at 2810 Jay Road to RR-E. The motion carried: 7:0. Havlick and Toor absent.

10. **SECOND READING AND CONSIDERATION OF ORDINANCE NO. 7099 TO ANNEX AND ZONE ONE LOT OF APPROXIMATELY 1.06 ACRES LOCATED AT 4095 GARNET LANE TO RURAL RESIDENTIAL-ESTABLISHED (RR-E); AND - 10:00 p.m.**

- 1) Jim Logan, 1455 Tarmouth Ave, Suite 114 - re: concerned about communications

between City Staff and Applicant. The annexation should not be based on adjacent neighborhood- Githen Acres.

2) Chris Ozeroff, 1800 Broadway - re: owner of property to be annexed at Garnet. House size is average and not mis-represented by memo.

3) Jim Snow, 2305 Topaz Drive - re: Silver Lake Ditch and Githens Acres representative. First right of refusal as a condition in the annexation is of concern to owners. Not opposed to the annexation but would like future review.

Councilmember Morzel moved, seconded by Poinsatte to table action to January 2nd meeting. The motion failed 2:5. Corson, Eldridge, Lopez, Mock, Riggle opposed. Havlick and Toor absent.

Councilmember Eldridge moved, seconded by Lopez, to adopt Ordinance No. 7099 to annex and zone one lot of approximately 1.06 acres located at 4095 Garnet Lane to Rural Residential- Established. The motion carried:5-0. Morzel and Poinsatte opposed. Havlick and Toor absent.

11. CONSIDERATION OF A MINOR AMENDMENT TO THE BOULDER VALLEY COMPREHENSIVE PLAN (BVCP) AREA I, AREA II, AREA III MAP, TO CHANGE THE DESIGNATION FROM AREA IIB TO IIA FOR THIS PROPERTY.

1) Robert Sharpe, 5995 Marshall Drive - re: unhappy with the annexation meeting criteria for the Boulder Valley Comprehensive Plan.

Councilmember Eldridge moved, seconded by Lopez, to approve a minor amendment to the Boulder Valley Comprehensive Plan (BVCP) Area I, Area II, Area III Map, to change the designation from Area IIB to IIA for this property. The motion carried: Havlick and Toor absent.

FIRST READINGS: - 10:45 p.m.

12. INTRODUCTION, FIRST READING, AND CONSIDERATION OF A MOTION TO ORDER PUBLISHED BY TITLE ONLY AN ORDINANCE AMENDING CHAPTER 2-3, B.R.C. 1981, ABOLISHING THE BOARD OF BUILDING

**APPEALS AND TRANSFERRING ITS FUNCTIONS TO THE BOARD OF
ZONING ADJUSTMENT AND BUILDING APPEALS.**

Councilmember Corson moved, seconded by Lopez, to introduce and order published by title only Ordinance No.7109 amending Chapter 2-3, B.R.C. 1981, abolishing the Board of Building Appeals and transferring its functions to the Board of Zoning Adjustment and Building Appeals. The motion carried:7-0. Havlick and Toor absent.

13. INTRODUCTION, FIRST READING AND CONSIDERATION OF A MOTION TO ORDER PUBLISHED BY TITLE ONLY AN ORDINANCE RELATING TO SUPPLEMENTAL APPROPRIATIONS TO THE 2001 BUDGET.

Councilmember Corson moved, seconded by Lopez, to introduce and order published by title only Ordinance No. 7110 relating to supplemental appropriations to the 2001 Budget. The motion carried: 7-0. Havlick and Toor absent.

14. INTRODUCTION, FIRST READING AND CONSIDERATION OF A MOTION TO ORDER PUBLISHED BY TITLE ONLY AN ORDINANCE AMENDING TITLE 9-6.5, INCLUSIONARY ZONING.

Councilmember Corson moved, seconded by Lopez, to introduce and order published by title only Ordinance No. 7111 amending Title 9-6.5, Inclusionary Zoning. The motion carried: 7-0. Havlick and Toor absent.

15. INTRODUCTION, FIRST READING AND CONSIDERATION OF A MOTIONS TO PUBLISH BY TITLE ONLY AN ORDINANCE AMENDING SECTION 7-6-16, B.R.C. 1981, CONCERNING PARKING BY PERSONS WITH DISABILITIES.

Councilmember Corson moved, seconded by Lopez, to introduce and order published by title only Ordinance No. 7112 amending section 7-6-16, B.R.C. 1981, concerning parking by persons with disabilities. The motion carried: 7-0. Havlick and Toor absent.

16. INTRODUCTION, FIRST READING AND CONSIDERATION OF A MOTION TO ORDER PUBLISHED BY TITLE ONLY AN ORDINANCE DESIGNATING THE STRUCTURE AND ITS SITE LOCATED AT 1740 SUNSET BLVD., NORTH 145 FEET, LOT 25, BLOCK 1, SUNSET HILL, CITY OF BOULDER, AS AN INDIVIDUAL LANDMARK UNDER THE CITY OF BOULDER HISTORIC PRESERVATION CODE.

Owners/Applicant: Roger & Phyllis Olson

Councilmember Corson moved, seconded by Lopez, to introduce and order published by title only Ordinance No. 7113 designating the structure and its site located at 1740 Sunset Blvd., north 145 feet, Lot 25, Block 1, Sunset Hill, City of Boulder, as an individual landmark under the

City of Boulder Historic Preservation Code. The motion carried:7-0. Havlick and Toor absent.

17. **INTRODUCTION, FIRST READING AND CONSIDERATION OF A MOTION TO ORDER PUBLISHED BY TITLE ONLY AN ORDINANCE DESIGNATING THE STRUCTURE AND ITS SITE LOCATED AT 1123 SPRUCE, LOT 9, BLOCK 119, BOULDER ORIGINAL TOWNSITE, CITY OF BOULDER, ALSO KNOWN AS THE SOULE-COATES HOUSE, AS AN INDIVIDUAL LANDMARK UNDER THE CITY OF BOULDER HISTORIC PRESERVATION CODE.**

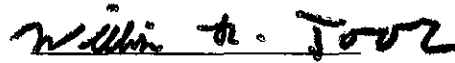
Owners/Applicant: B.S. Land & Cattle Co./Jack Rudd, owner representative

Councilmember Corson moved, seconded by Lopez , to introduce and order published by title only Ordinance No. 7114 designating the structure and its site located at 1740 Sunset Blvd., north 145 feet, Lot 25, Block 1, Sunset Hill, City of Boulder, as an individual landmark under the City of Boulder Historic Preservation Code. The motion carried: 7-0. Havlick and Toor absent.

ADJOURNMENT

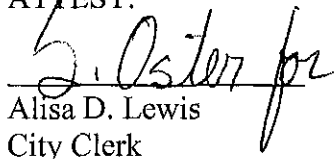
There being no further business to come before Council at this time, BY MOTION REGULARLY ADOPTED, THE MEETING WAS ADJOURNED AT 10:50 p.m.

APPROVED BY COUNCIL:



Will Toor
Mayor

ATTEST:


Alisa D. Lewis
City Clerk